

ADMINISTRATIVE TRIBUNALS

CONSTITUTIONAL TEXT -> STATUTORY OPERATION -> JUDICIAL CONTROL -> REFORM

Articles 323A/323B | Administrative Tribunals Act 1985 | L. Chandra Kumar | 2021 rationalisation

DEFINITION AND CATEGORY FIREWALL

- Tribunal = statute-created specialist adjudicator with limited subject jurisdiction.
- Court = ordinary/constitutional judiciary; High Courts retain Arts 226/227.
- Quasi-judicial describes a function requiring fair hearing; it is wider than tribunal.
- Departmental appeal = executive reconsideration, even when natural justice applies.
- Test every body by source, function, independence, binding power and review route.

TRAP: enabling provision is not the institution; finality is not exclusion of review.

ORIGIN AND CONSTITUTIONAL TIMELINE

- 1976: Forty-second Amendment inserts Part XIV-A, Articles 323A and 323B.
- 1985: Administrative Tribunals Act creates CAT route and enables SAT/JAT.
- 1987: S.P. Sampath Kumar accepts an effective alternative mechanism context.
- 1997: L. Chandra Kumar preserves constitutional review; tribunals become supplemental.
- 2010-2021: R. Gandhi, Rojer Mathew and MBA line police independence.

ANSWER LINE: specialist first instance; independent design; constitutional supervision.

ARTICLE 323A CLAUSE MAP

- (1) Parliament only; recruitment and conditions of service in public employment.
- (2)(a) Union/State/shared-State tribunals; (b) jurisdiction incl contempt.
- (2)(c) procedure incl limitation/evidence; (d) exclusion text except Art 136.
- (2)(e) transfer; (f) Art 371D(3) order; (g) fees/enforcement/incidental.
- (3) notwithstanding clause; L. Chandra Kumar limits exclusion effect.

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ARTICLE 323B CLAUSE MAP

- (1) appropriate Legislature within competence; disputes, complaints or offences.
- (2) tax; forex/import-export; labour; land reform; urban ceiling; elections.
- Also food/essential goods/prices; rent/tenancy; offences/fees; incidental.
- (3) hierarchy, powers incl contempt, procedure, exclusion text, transfer, support.
- (4) notwithstanding clause; constitutional judicial review still survives.

ANSWER LINE: specialist first instance; independent design; constitutional supervision.

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323A VERSUS 323B

- 323A: service field; Parliament only; administrative tribunal arrangements.
- 323B: multiple listed fields; competent Parliament/State Legislature; hierarchy.
- Both are enabling: implementing legislation creates and defines the tribunal.
- Both mention contempt, limitation, evidence, transfer and exclusion text.
- Neither authorises removal of Arts 226/227 and 32 basic-structure review.

TRAP: enabling provision is not the institution; finality is not exclusion of review.

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1985 ACT: INSTITUTIONS, JURISDICTION AND EXCLUSIONS

- Section 4: CAT; requested SAT; Joint Tribunal for participating States.
- Section 14: covered Union service; Section 15: State; Section 16: JAT.
- Section 2 excludes armed-forces members, judicial staff incl subordinate courts,
- and legislative secretariat staff; civilian defence posts are a distinct inquiry.
- CAT is statutory; body notifications and Section 3(q) matter.

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APPLICATION, PROCEDURE AND POWERS

- Adverse service action -> departmental remedy ordinarily (s20) -> OA -> s21 limitation.
- Section 22: natural justice; not rigidly CPC-bound; civil-court-type powers.
- Evidence is flexible but fair; notice, disclosure, impartiality and reasons remain.
- Review is bounded; s27 execution; interim relief is jurisdiction-specific.
- Sections 29/29A transfer qualifying pending matters in statutory situations.

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CONTEMPT, REVIEW AND ROUTES

- Section 17 gives contempt power; T. Sudhakar Prasad confirms survival.
- Contempt punishment appeal follows special statutory route to Supreme Court.
- Ordinary merits order -> territorial High Court Division Bench, Arts 226/227.
- Thereafter Art 136 special leave is discretionary, not appeal as of right.
- Review, statutory appeal, judicial review and special leave differ.

ANSWER LINE: specialist first instance; independent design; constitutional supervision.

CASE-LAW LADDER

- Sampath Kumar (1987): effective alternative institutional mechanism context.
- L. Chandra Kumar (1997): 226/227 and 32 basic structure; first instance.
- UOI v R. Gandhi (2010): functional equivalence and independence.
- MBA NTT (2014): deficient substitute for HC substantial-law function invalid.
- Rojer Mathew (2019) + MBA 2020/2021: rules, selection, tenure, influence.

TRAP: enabling provision is not the institution; finality is not exclusion of review.

2021 RATIONALISATION AND CURRENT-LAW METHOD

TRAP: enabling provision is not the institution; finality is not exclusion of review.

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2021 RATIONALISATION AND CURRENT-LAW METHOD

- 2021 Act abolished specified appellate bodies and transferred functions.
- Consolidation may reduce duplication but shift workload/expertise/access costs.
- Invalidated age, short-tenure and executive-choice features are not current law.
- Read parent Act + surviving 2021 provisions/rules + binding judgments.
- Never imply every tribunal follows the ATA or one appeal structure.

ANSWER LINE: specialist first instance; independent design; constitutional supervision.

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INSTITUTIONAL COMPARISON AND PERFORMANCE

- CAT-service; NGT-environment; NCLT-company/insolvency; AFT-armed forces.
- TDSAT-telecom; legal basis/function/route differ; 323B label is not automatic.
- Benefits: expertise, focused procedure, consistency, access, court relief.
- Problems: vacancies, executive control, fragmentation, infrastructure, precedent.
- Measure disposal, vacancy duration, remands, user cost and decision quality.

TRAP: enabling provision is not the institution; finality is not exclusion of review.

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REFORM, PYQ ROUTE AND QUALIFIED VERDICT

- Independent appointments/admin; secure conditions; vacancy calendar; budgets.
- Regional benches + e-filing + assisted access + searchable reasoned decisions.
- Coherent appeals, larger-bench conflict resolution, transfer plans and data.
- PYQ: define -> 323A/B -> ATA -> cases -> need/problems -> 2021 -> reform.
- Verdict: specialist first instance only under independence and constitutional review.

ANSWER LINE: specialist first instance; independent design; constitutional supervision.

VERDICT: TRIBUNALS SUPPLEMENT CONSTITUTIONAL COURTS; THEY CANNOT SUPPLANT THEM.